The State Department says every visa decision is "a national security decision". Trump has suggested that foreign student enrolment at Harvard be capped at 15 per cent from the current 31 per cent, claiming that Americans are losing out. J.D. Vance, his vice president, shares the sentiment, arguing that foreign students "take spots from American kids".

It is not fooling anyone. Gibson says this is less about immigration, more about tightening controls on universities. "Trump views colleges with suspicion. The knowledge they produce challenges his worldview," he says. Issues like climate change and Covid-19 exemplify this, where scientific findings trump Trump's claims. Prof. Rajiv Sethi of Barnard College, Columbia University, recalls how Vance once declared that American conservatism would triumph only by capturing or dismantling elite universities.

Elora Mukherjee, Jerome L. Greene clinical professor of law, and director, Immigrants' Rights Clinic, Columbia Law School, says the policy "seems driven by cruelty, white nationalism and racism", with visa decisions now vulnerable to prejudice arising out of race, religion and political views. This security narrative has expanded to include counter-terrorism and antisemitism. The Department of Homeland Security warns that "antisemitic activity on social media" and "harassment of Jewish individuals" may affect migrant visas. Visa eligibility is now linked to the administration's stance on the Israeli-Palestinian conflict. It is also part of a wider ideological assault on universities deemed too liberal. Harvard, for instance, is accused by the Trump administration of fostering antisemitism and promoting diversity, equity and inclusion (DEI) policies, which it sees as racist (see column *Anatomy of a Standoff*). Columbia University, on the other hand, risks losing its accreditation over claims it violated the civil rights of its Jewish students.

LIMITED LEGAL RECOURSE

As international students, particularly from India, navigate the uncertainties thrown up by the Trump administration's new visa policies, they are exploring the legal avenues available to them, the specifics of the expanded social media vetting, and support structures. For individual students, the financial stakes are steep. B.K. Shukla of The Ivy League Edge, a college application consultancy, notes that university applications alone cost Rs 10,000-15,000 per institution, while education consultants typically charge Rs 5-6 lakh. Many students have already paid tuition fees or booked housing, sums that may not be refundable. The real blow, though, Shukla says, is in the opportunity cost. "Losing a year means forgoing a degree, work experience and an early start to a career." The risk is not just in the money, but also the momentum.

For Indian students whose visa applications have been put on indefinite hold, direct legal avenues seem severely limited. The US Supreme Court has ruled that the State Department is immune from lawsuits over the denial of a visa abroad under what is called the consular non-reviewability doctrine. "When a person requests a visa for a country, it is a request to that government, not a right," says BDO's Kapoor. "A case filed in an Indian court will have no locus standi to direct a foreign government. The only recourse for students is to send a petition to the US embassy in India requesting an update on their visa status or seeking expedited processing." Kuck offers some practical advice: "Students can better prepare for an interview, ascertain the underlying reason for the denial, and bring evidence and verbal description of how to overcome that initial decision." Indian consultants also recommend students erase even mild political posts or join "safe" groups on social media.

And though the Trump administration's new student visa measures will primarily affect individuals and institutions, they may also have diplomatic reverberations. The Indian ministry of external affairs (MEA) has publicly urged the US to "ensure timely issuance of student visas based on merit". MEA spokesperson Randhir Jaiswal, while acknowledging that "a visa is a sovereign right of a country", emphasised this appeal and reiterated that "the welfare of Indian students abroad remains a top priority for the Government of India".

LEARNING AND EARNING

Indian students in the US have till now had unfettered pathways to gain practical work experience after graduation through programmes like Optional Practical Training (OPT) and the H-1B visa. Here's the existing status quo, now imperilled, on these options:

OPTIONAL PRACTICAL TRAINING

- OPT has till now allowed F-1 visa students, who studied at an accredited US college or university or English at an English language institute, to work in the US for up to 12 months after graduation
- Those with degrees in STEM (Science, Technology, Engineering, and Mathematics) fields may qualify for a 24-month extension, bringing the total work authorisation period to 36 months

THE STATUS NOW

- The Fairness for High-Skilled Americans Act, 2025, proposes to eliminate the OPT programme
- It argues that the programme gives international graduates an unfair advantage over domestic students

